

1 CODE 1120

2  
3  
4  
5  
6 IN THE FAMILY DIVISION  
7 OF THE SECOND JUDICIAL DISTRICT COURT OF THE STATE OF NEVADA  
8 IN AND FOR THE COUNTY OF WASHOE

9 IN THE MATTER OF: )  
10 EVAKAY BALDES, AND ) Case No. JV24-00104  
11 ALEXIS CLARK, ) JV24-00105  
12 MINOR CHILDREN. ) Dept. No. JM1

13 **MASTER'S FINDINGS OF FACT AND RECOMMENDATIONS AFTER**  
14 **SETTLEMENT CONFERENCE; CONVERTED TO CONTINUED ADJUDICATORY**  
15 **HEARING ON THE PETITION FOR HEARING AND DISPOSITION HEARING**  
16 **AS TO MEGAN MCCAFFERTY**

17 This matter came before the Court on April 10, 2024, for a Settlement Conference, which  
18 was converted by verbal stipulation by all parties through counsel to a continued Adjudicatory  
19 Hearing on the Petition for Hearing filed February 5, 2024, as well as a Disposition Hearing as to  
20 Megan McCafferty, before Master Alison Testa and the following persons appeared: Evakay  
21 Baldes and Alexis Clark, said minor children, were not present and their appearances were  
22 waived by their counsel, Jennifer Jeans, Esq. with Northern Nevada Legal Aid, who appeared by  
23 video conference; Megan McCafferty, mother of said minor children, appeared by video  
24 conference, and was represented by Irene Hart, Deputy Public Defender, who also appeared by  
25 video conference for Christine Sullivan, Deputy Public Defender; Donovan Clark, presumed  
26 father of Alexis Clark, appeared by video conference, and is represented by Tirzah Mathews,  
Deputy Alternate Public Defender, who was not present and was not required to be present;

1 Natasha Mieras and Jennie Ballou, case workers from Washoe County Human Services Agency,  
2 appeared by video conference, and were represented by Tyler E. Beach, Deputy District  
3 Attorney, who also appeared by video conference.

4 The parties were advised of their rights. The Court, having received the Washoe County  
5 Human Services Agency's Report to the Court filed on March 7, 2024, and hearing from all  
6 interested parties and considering itself fully advised in the premises, hereby makes the  
7 following findings and recommendations:

8 FINDINGS

9 1. The Court has jurisdiction pursuant to NRS Chapter 432B, 432B.410, and NRS  
10 Chapter 125A.

11 2. An initial inquiry has been made about whether the Indian Child Welfare Act applies.  
12 Based upon information provided by the parents or obtained by the Washoe County Human  
13 Services Agency ("WCHSA"), it is unknown whether the Indian Child Welfare Act does not  
14 apply.

15 3. Notification of this hearing was properly served upon the parties.

16 4. Megan McCafferty submitted to the allegations contained in the *First Amended*  
17 *Petition for Hearing as to Megan McCafferty* filed April 11, 2024.

18 5. The allegations contained in the First Amended Petition for Hearing as to Megan  
19 McCafferty filed April 11, 2024, are sustained.

20 6. The children are in need of protection pursuant to NRS 432B.330(1)(b), as Megan  
21 McCafferty, a person responsible for their welfare, subjected them to neglect.

22 7. The current physical placement of said children in family foster care is appropriate,  
23 the least restrictive, and consistent with the best interest and special needs of the children.  
24 Further, it is in the best interest of the children to be placed together pursuant to NRS 432B.550.

25 ///

26 ///

1 8. Washoe County Human Services Agency has made reasonable efforts to make it safe  
2 for the children to return home pursuant to NRS 432B.393 as set forth in section X of the Court  
3 Report filed on March 7, 2024. The reasonable efforts include but are not limited to:

- 4 • DVA services (declined);
- 5 • Drug testing for both parents (declined);
- 6 • Motel stay for Ms. McCafferty and the children (declined);
- 7 • Voucher for counseling for Evakay (did not follow through);
- 8 • Voucher to ACCS for psychosocial with DV add-on, and individual counseling (12  
9 sessions);
- 10 • Voucher to Kids First Family Services for couples/family counseling (12 sessions);
- 11 • Voucher to Kids First Family Services for parenting classes (8 sessions);
- 12 • Voucher to ACCS for Effects of Violence workshop for both parents (6 sessions); and
- 13 • Bus passes to both parents.

14 9. The Case Plan and Service Agreements for Megan McCafferty, Evakay Baldes and  
15 Alexis Clark are appropriate.

16 10. The permanency plan is reunification.

#### 17 RECOMMENDATIONS

18 1. Legal and physical custody and care with the authority to determine the appropriate  
19 placement of Evakay Baldes and Alexis Clark shall remain with the Washoe County Human  
20 Services Agency, subject to review by the Court.

21 2. Washoe County Human Services Agency may consent to any and all necessary and/or  
22 emergency medical treatment for the children while the children remain in its custody.

23 3. Megan McCafferty is ordered to comply with the Case Plan and Service Agreement  
24 filed on March 8, 2024, subject to Court review upon request of any party. The Case Plan and  
25 Service Agreement shall be updated upon receipt of evaluation results and/or recommendations.

26 ///

1           4. Megan McCafferty shall provide Washoe County Human Services Agency with  
2 identifying information, including names, addresses and phone numbers of any relatives with  
3 whom the children may be placed.

4           5. Megan McCafferty shall refrain from harmful or offensive conduct to the children, the  
5 other parent, the custodian of the children or any person who has placement, to include  
6 discussing the details of this case and any disparaging statement or comments.

7           6. Visitation as outlined in the Individualized Family Engagement and Visitation Plan  
8 and attached as Exhibit 7 to the Court Report filed on March 7, 2024, is adopted as an order of  
9 this Court and incorporated herein as though fully set forth.

10           7. Megan McCafferty shall reimburse Washoe County Human Services Agency pursuant  
11 to NRS 432B.560(2) to defray the expenditures for Evakay Baldes and Alexis Clark while in  
12 foster care. Costs of care shall be set at zero (\$0.00) effective January 2024, as the Court does  
13 not wish to inhibit reunification efforts,

14           8. The Evidentiary Hearing scheduled for May 3, 2024, at 1:30 p.m., is VACATED.

15           9. The Six-Month Semiannual Review Hearing scheduled for July 10, 2024, at 1:30 p.m.,  
16 shall be maintained.

17           10. The 12-Month Permanency Hearing scheduled for January 8, 2025, at 3:00 p.m., shall  
18 be maintained.

19           11. All previous orders not in conflict with this order will remain in full force and effect.

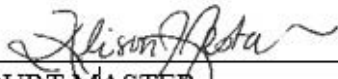
20           NRS 125C.0045(6) regarding abduction, concealment or detention of a child: PENALTY  
21 FOR VIOLATION OF ORDER: THE ABDUCTION, CONCEALMENT OR DETENTION OF  
22 A CHILD IN VIOLATION OF THIS ORDER IS PUNISHABLE AS A CATEGORY D  
23 FELONY AS PROVIDED IN NRS 193.130. NRS 200.359 provides that every person having a  
24 limited right of custody to a child or any parent having no right of custody to the child who  
25 willfully detains, conceals or removes the child from a parent, guardian or other person having  
26 lawful custody or a right of visitation of the child in violation of an order of this court, or

1 removes the child from the jurisdiction of the court without the consent of either the court or all  
2 persons who have the right to custody or visitation is subject to being punished for a category D  
3 felony as provided in NRS 193.130.

4 Pursuant to NRS 125C.0045(7) the terms of the Hague Convention of October 25, 1980,  
5 adopted by the 14th Session of The Hague Conference on Private International Law, apply if a  
6 parent abducts or wrongfully retains a child in a foreign country.

7 IT IS SO RECOMMENDED.

8 Dated: April 25, 2024

9   
10 COURT MASTER

11  
12 NOTICE

13 These Recommendations are governed by WDCR 24 and WDFCR 32. Any objection or  
14 motion to adopt or modify the master's recommendation shall be filed within 7 days after service  
15 of written findings of fact and recommendation. The objection or motion to adopt or modify shall  
16 briefly state the primary issues for review.